

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amanda Harouche	Team: Squad #16	CCRB Case #: 201506339	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 07/27/2015 4:40 PM	Location of Incident: Bergen Street and 4th Avenue	18 Mo. SOL 1/27/2017	Precinct: 78
Date/Time CV Reported Fri, 07/31/2015 10:40 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/31/2015 10:40 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Marshall	18583	953054	078 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Richard Brown	00940	948703	078 PCT
2. POM Joshua Gregory	03884	949062	078 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Marshall	Abuse: PO Robert Marshall stopped § 87(2)(b)	A . Exonerated
B . POM Robert Marshall	Force: PO Robert Marshall used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Robert Marshall	Abuse: PO Robert Marshall frisked § 87(2)(b)	C . Substantiated
D . POM Robert Marshall	Abuse: PO Robert Marshall searched § 87(2)(b)	D . Substantiated
E . POM Robert Marshall	Abuse: PO Robert Marshall issued a summons to § 87(2)(b)	E . Exonerated

Case Summary

On July 27, 2015, around 4:40 p.m., § 87(2)(b) was walking down 4th Avenue until Bergen Street. § 87(2)(b) crossed 4th Avenue at the corner of Bergen Street and proceeded to walk down Bergen Street. After he crossed 4th Avenue, PO Robert Marshall, of the 78th Precinct, stopped § 87(2)(b) and told him that he had seen him drinking a beer (**Allegation A**). PO Marshall also allegedly pushed § 87(2)(b)'s shoulders once with the palms of his hands (**Allegation B**). PO Marshall then frisked and searched § 87(2)(b)'s bag (**Allegation C, Allegation D**). § 87(2)(b) and PO Marshall and PO Joshua Gregory, also of the 78th Precinct, started having a “heated” conversation using raised voices and hostile tones. § 87(2)(b) was mainly saying “Black lives matter.” A crowd of people gathered to watch the interaction between § 87(2)(b) and the officers. The crowd did not get involved in the incident but they stood around and watched it. § 87(2)(b) was issued two summonses as a result of this incident, one for jaywalking and one for disorderly conduct- creating a hazardous or physically offensive condition by any act which serves no legitimate purpose (**Allegation E**). There is no video footage in this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation § 87(2)(g) (Board Review 01, Board Review 02).
- As of October 2, 2015, § 87(2)(b) did not file a notice of claim with the Comptroller’s Office of the City of New York (Board Review 03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) (Board Review 06).
- PO Robert Marshall has been a member of the service for three years, and has had two prior CCRB complaints which have been closed as complainant uncooperative (Board Review 07).

Findings and Recommendations

Allegation A – Abuse of Authority: PO Robert Marshall stopped § 87(2)(b)

It is undisputed that PO Marshall stopped § 87(2)(b). § 87(2)(b) stated that after he crossed 4th Avenue, at the corner, PO Marshall told § 87(2)(b) to stop because he saw him drinking a beer, which § 87(2)(b) denied doing (Board Review 01, Board Review 02). Although § 87(2)(b) denied that he had been drinking, all parties involved agree that when PO Marshall first approached § 87(2)(b) he informed him that he was doing so because he had observed him drinking a beer.

PO Marshall stated that he saw § 87(2)(b) drinking a beer on 4th Avenue and when he exited the police car to go stop § 87(2)(b) for drinking the beer, § 87(2)(b) crossed across 4th Avenue in the middle of the street while cars were driving. § 87(2)(b) walked in between cars and PO Marshall lost sight of § 87(2)(b)'s hands for a few seconds. PO Marshall followed after § 87(2)(b) now also intending to issue § 87(2)(b) a summons for jaywalking. By the time PO Marshall caught up to § 87(2)(b) § 87(2)(b) did not have the beer PO Marshall had previously observed in his hand anymore. Because of this, PO Marshall could not issue § 87(2)(b) a summons for an open

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C – Abuse of Authority: PO Robert Marshall frisked § 87(2)(b)

Allegation D – Abuse of Authority: PO Robert Marshall searched § 87(2)(b)

It is undisputed that PO Marshall searched § 87(2)(b)'s bag.

§ 87(2)(b) stated that he had a black backpack on his back with one zipper that went around the top of the bag. PO Marshall opened the zipper of § 87(2)(b)'s backpack while it was on his back. § 87(2)(b) then removed his backpack from his back and placed it on the ground. PO Marshall then looked through § 87(2)(b)'s backpack when it was on the ground. There was no conversation about PO Marshall searching his backpack between § 87(2)(b) and PO Marshall (Board Review 01, Board Review 02).

PO Marshall stated that as he was asking § 87(2)(b) for his identification, § 87(2)(b) was clutching his backpack, which was a nylon drawstring backpack without a zipper, on the side of his body while telling PO Marshall that he was not going to give him his identification and said that PO Marshall was harassing him and asked “Why do you pigs always got to harass me?” § 87(2)(b) then started screaming, “Black lives matter” and caused a crowd to form. Because of the statements § 87(2)(b) was making and because of the way § 87(2)(b) was clutching his bag to the side of his body, PO Marshall was concerned for his safety because he did not know if § 87(2)(b) was carrying a concealed weapon on him. The way § 87(2)(b) was clutching his bag led PO Marshall to believe he had something inside the bag. PO Marshall did not know what was in the bag but he wanted to get the bag away from § 87(2)(b) in order to make the situation safe. PO Marshall asked § 87(2)(b) to put the bag down but § 87(2)(b) refused to do so. PO Marshall then grabbed § 87(2)(b)'s bag and took it off of him. PO Marshall felt the outside of the bag and felt a cylindrical object that PO Marshall thought could have been anything. PO Marshall then opened § 87(2)(b)'s bag and looked inside to see what the item he felt was. PO Marshall opened § 87(2)(b)'s bag because § 87(2)(b) was not in handcuffs and the item inside the bag, whatever it was, was in a lungable grabable area. PO Marshall placed his hand inside the bag and grabbed the item he felt to see what it was. PO Marshall saw that the object he felt was a bottle of orange juice. PO Marshall then placed the bag on the ground (Board Review 08, Board Review 09).

PO Gregory stated § 87(2)(b) was clutching his backpack to his body and that PO Marshall asked § 87(2)(b) for the backpack because of the way he was holding the bag. § 87(2)(b) did not give PO Marshall the backpack so PO Marshall took the backpack from him and looked inside it. PO Gregory was not sure if PO Marshall placed his hand inside the bag and PO Marshall did not communicate what he saw inside the bag (Board Review 10, Board Review 11). PO Brown arrived at the location later into the incident but did not see PO Marshall search through § 87(2)(b)'s bag (Board Review 13, Board Review 14).

A frisk is only permissible if the police possess a particularized reasonable suspicion that the suspect is “armed and may be dangerous.” People v. Russ, 61 N.Y.2d 693 (Board Review 16). Courts have recognized that frisks are not limited to people and may also extend to items in their possession as well. Matter of Robert S., 22 Misc. 3d 1120 (A)(Fam. Ct. Bronx Cty., 2008) (Board Review 17). A bag that is flexible and whose contents can be felt by touching its exterior, can be

patted down if there is reasonable suspicion that it contains a weapon and may be opened for a search only when after a pat down, the officer reasonably believes it contains a weapon People v. Emerhall, 181 Misc. 2d 400 (Sup. Ct. Kings Cnty, 1999) (Board Review 18).

§ 87(2)(g)

Based on the above, it is recommended that **Allegations C and D** be closed as **substantiated**.

Allegation E – Abuse of Authority: PO Robert Marshall issued a summons to § 87(2)(b)

§ 87(2)(b) alleges that PO Marshall made up charges and issued him summonses for these made up charges. § 87(2)(b) said that he crossed 4th Avenue, but that he crossed the avenue at the corner of Bergen Street at a green light. During their interaction, § 87(2)(b) stated that the conversation was “hostile” and that he was using the same tone with the officers as they were using with him. § 87(2)(b) said he was speaking to the officers in a heated manner with a raised voice and that the main thing he was saying was “Black lives matter.” § 87(2)(b) stated that at least ten people gathered around and watched the incident when § 87(2)(b) was saying things like “Black lives matter” to the officers (Board Review 01, Board Review 02).

In regard to the jaywalking summons that PO Marshall issued to § 87(2)(b) PO Marshall stated that after he observed § 87(2)(b) drinking a beer on the sidewalk and he exited the car to approach him, § 87(2)(b) crossed the street in the middle of 4th Avenue while traffic was moving, which constituted jaywalking (Board Review 08, Board Review 09). PO Gregory observed § 87(2)(b) cross the street in the middle of 4th Avenue while traffic was moving and had to wait until traffic stopped in order to safely cross the street to follow after § 87(2)(b) and PO Marshall (Board Review 10, Board Review 11). PO Brown did not see anyone cross the street because they crossed the street behind the police vehicle and PO Brown was facing forward (Board Review 12, Board Review 13).

In regard to the disorderly conduct summons that PO Marshall issued to § 87(2)(b) PO Marshall stated that when he stopped § 87(2)(b) for jaywalking, § 87(2)(b) refused to give PO

Marshall his identification. § 87(2)(b) told PO Marshall “I’m not going to give you my ID. Stop fucking harassing me” and then started screaming at the top of his lungs “Black lives matter. Black lives matter” while making a fist pumping motion in the air with both of his hands while turning his body around. When § 87(2)(b) did this, a crowd formed around PO Marshall and § 87(2)(b) which completely blocked the sidewalk and caused a female pushing a carriage to walk into the street because she could not get around the crowd on the sidewalk. PO Marshall issued § 87(2)(b) a disorderly conduct summons for creating a hazardous condition by causing a crowd to gather. PO Gregory, PO Brown and § 87(2)(b) himself corroborate PO Marshall’s statement that § 87(2)(b) was making statements at the officers in a loud voice and caused a crowd to gather on the sidewalk.

The jaywalking summons states that § 87(2)(b) crossed the middle of 4th Avenue between Bergen Street and Dean Street and stopped and blocked multiple vehicles as he crossed over 6 lanes of traffic. The disorderly conduct summons states that when PO Marshall stopped § 87(2)(b) for jaywalking, § 87(2)(b) began to scream, “Stop harassing” and “Black lives matter.” § 87(2)(b)s actions caused a crowd to gather, forced an adult pushing a baby carriage into traffic as cars slowed to observe. § 87(2)(b) stated in PO Marshall’s presence, “Black lives matter. You are a bald headed pig. Go fuck yourself. Stop harassing me” (Board Review 14).

New York State Penal Law 240.20(7) states that a person is guilty of disorderly conduct when, with the intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof in a public place, the individual creates a physically hazardous or physically offensive condition by any act which serves no legitimate purpose (Board Review 16).

§ 87(2)(g) Therefore, it is recommended that **Allegation E** be closed as **exonerated**.

Pod: _____

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____

Title/Signature

Print

Date